

{{AGENCY_NAME}}

{{AGENCY_ADDRESS}} | {{AGENCY_CITY}}, {{AGENCY_STATE}} {{AGENCY_ZIP}}

Phone: {{AGENCY_PHONE}} | Email: {{AGENCY_EMAIL}} | License #: {{AGENCY_LICENSE_NUMBER}}

OHIO STATE ADDENDUM

This addendum supplements the Service Agreement and Hiring Documents for operations in the State of Ohio.

INFORMATIONAL — review with Ohio-licensed counsel before relying on this content. Citations reflect law as of the document date and may change.

1. Ohio Licensure / Certification

Depending on services offered, {{AGENCY_NAME}} operates under one or more of the following: Ohio Department of Health Home Health Agency certification (Medicare/Medicaid), Ohio Department of Aging PASSPORT/MyCare provider certification (ORC Chapter 173), and/or Ohio Department of Medicaid provider agreement under the Home Care Waiver (OAC 5160). License/Provider #: {{OH_PROVIDER_NUMBER}}.

2. Background Checks (Caregiver Hiring)

Ohio requires the following pre-employment screenings before a direct care worker may be hired or assigned to a client:

- Ohio Bureau of Criminal Investigation (BCI) state criminal records check
- FBI federal criminal records check for any applicant who has not been an Ohio resident continuously for the past five years
- Database checks per ORC § 109.572 and OAC 3701-13-06 / 5160-45-11, including: OIG List of Excluded Individuals/Entities, GSA System for Award Management, U.S. Treasury OFAC, Ohio Sex Offender registry, Ohio Nurse Aide Registry abuse findings, and the Department of Developmental Disabilities Abuser Registry.
- Driver's license abstract from the Ohio Bureau of Motor Vehicles for any caregiver who will transport clients.

Disqualifying offenses are listed in ORC § 109.572. Re-checks are performed every five (5) years per OAC 3701-13.

3. Mandatory Reporting (OH)

Under ORC § 5101.61, certain employees and providers are mandated reporters of adult abuse, neglect, and exploitation. Under ORC § 2151.421, certain employees are mandated reporters of child abuse and neglect.

- Ohio Adult Protective Services (county-based): 1-855-OHIO-APS (1-855-644-6277)
- Ohio Child Protective Services / 24-hour hotline: 1-855-O-H-CHILD (1-855-642-4453)
- Ohio Department of Health complaint hotline: 1-800-342-0553
- Reports must be made immediately upon suspicion.

4. Training and Competency

Direct care workers must satisfy the training and competency requirements of OAC 3701-17 (home health aides) and/or OAC 5160-45-08 (waiver personal care aides), including initial competency evaluation, infection control, HIPAA, recognition of abuse/neglect, CPR/First Aid where required, and 12 hours of in-service training annually.

5. Wage and Hour

Ohio minimum wage applies. Federal FLSA companionship rules (29 C.F.R. § 552) apply to most direct-care workers, who are entitled to minimum wage and overtime for hours over 40 per week. Ohio prohibits discharge in retaliation for filing a wage claim (ORC § 4111.13).

6. Workers' Compensation

All Ohio employees are covered by the Ohio Bureau of Workers' Compensation (BWC) state fund. Policy #: {{OH_BWC_POLICY}}. Report any work-related injury to your supervisor and to BWC within 24 hours.

7. Client Rights (OH-specific)

In addition to the Bill of Rights, Ohio consumers have rights under ORC § 3721.13 / OAC 3701-17-09, including the right to receive written notice of services, fees, and the right to file a complaint with the Ohio Department of Health (1-800-342-0553), the Long-Term Care Ombudsman (1-800-282-1206), or, for waiver participants, the Ohio Department of Medicaid.

Signatures

Client / Authorized Representative Signature: _____ Date: _____

Printed Name: _____

Agency Representative Signature: _____ Date: _____

Printed Name & Title: _____